COPY

BOND NO. MI 6188

PERFORMANCE BOND

KNOW ALL MEN BY THESE PRESENTS, that we Jack Dykstra Excavating, Inc. of 3677 Three Mile Road NW, Grand Rapids, MI 49534, as Principal, and Merchants Bonding Company (Mutual), as Surety, are held and firmly bound unto TOWNSHIP OF ALGOMA, a Michigan general law township, as Obligee, in the sum of Three Hundred Seventy Thousand and 00/100*** ($370,000.00***), to be paid to the Obligee, its successors and assigns, upon the terms hereof, for which payment, well and truly to be made, we bind ourselves, our successors and assigns, jointly and severally, and firmly by these presents.

WHEREAS, Principal has been granted approval by Algoma Township (Obligee), for CONSTRUCTION/SITE IMPROVEMENTS at 8895 Hopewell Dr. NE, Rockford, MI, for Site Plan #_____, Project Known As 43 North Phase 2; Parcel #41-06-35-100-043. This bond will only cover the work performed by Jack Dykstra Excavating, Inc. in their contract with Wolven Investments, LLC for construction of 43 North Condominium Phase 2.

If, in Obligee's sole determination, the above-described obligation is timely and faithfully complied with in accordance with the terms of Algoma Township's Ordinance, Chapter 23 (Sec. 23.8) of the Algoma Township Code of Zoning Ordinances as amended from time-to-time, then this Bond shall have no force or effect, but otherwise it shall remain full force and effect and shall be payable to and for the benefit of the Obligee according to its terms.

If, in Obligee's sole determination, the Principal is delinquent in any manner or any extent in or with respect to the above-described obligation, the Obligee may notify the Surety in writing of such delinquency, and in that event, the Surety shall then forthwith and without reservation, delay or inquiry pay to the Obligee the full amount of this Bond or such lesser amount as may be specified by Obligee in its written notification of Principal's delinquency.

This Performance Bond shall remain in full force and effect until August 6, 2016 and during and for such additional period of time that the above-stated obligation remains unsatisfied, in whole or in part, by the Principal, but upon the full and timely satisfaction of such obligation, this Bond shall then be of no further force or effect.

IN WITNESS WHEREOF, the Principal and Surety have signed this Bond this 6th day of August, 2015.

Merchants Bonding Company (Mutual), Surety
By: Valerie Giuliano
Its: Valerie Giuliano, Attorney-in-Fact

Jack Dykstra Excavating, Inc., Principal
By: [signature]
Its: VICE PRES.

MERCHANTS
BONDING COMPANY
POWER OF ATTORNEY

Know All Persons By These Presents: that MERCHANTS BONDING COMPANY (MUTUAL) and MERCHANTS NATIONAL BONDING, INC., both being corporations duly organized under the laws of the State of Iowa (herein collectively called the "Companies"), and that the Companies do hereby make, constitute and appoint, individually

Robert B. Pollina, Dennis E. Scully, Robert J. Kazma, Carl VanderBosch, Valerie Giuliano

of Grand Rapids and State of Michigan their true and lawful Attorney-in-Fact, with full power and authority hereby conferred in their name, place and stead, to sign, execute, acknowledge and deliver in their behalf as surety any and all bonds, undertakings, recognizances or other written obligations in the nature thereof, subject to the limitation that any such instrument shall not exceed the amount of:

TWO MILLION ($2,000,000.00) DOLLARS

and to bind the Companies thereby as fully and to the same extent as if such bond or undertaking was signed by the duly authorized officers of the Companies, and all the acts of said Attorney-in-Fact, pursuant to the authority herein given, are hereby ratified and confirmed.

This Power-of-Attorney is made and executed pursuant to and by authority of the following By-Laws adopted by the Board of Directors of the Merchants Bonding Company (Mutual) on April 23, 2011 and adopted by the Board of Directors of Merchants National Bonding, Inc., on October 24, 2011.

"The President, Secretary, Treasurer, or any Assistant Treasurer or any Assistant Secretary or any Vice President shall have power and authority to appoint Attorneys-in-Fact, and to authorize them to execute on behalf of the Company, and attach the seal of the Company thereto, bonds and undertakings, recognizances, contracts of indemnity and other writings obligatory in the nature thereof.

The signature of any authorized officer and the seal of the Company may be affixed by facsimile or electronic transmission to any Power of Attorney or Certification thereof authorizing the execution and delivery of any bond, undertaking, recognizance, or other suretyship obligations of the Company, and such signature and seal when so used shall have the same force and effect as though manually fixed."

In Witness Whereof, the Companies have caused this instrument to be signed and sealed this 27th day of March, 2012.

MERCHANTS NATIONAL BONDING, INC. INCORPORATED -o- 2003

MERCHANTS BONDING COMPANY (MUTUAL) INCORPORATED -o- 1933

MERCHANTS BONDING COMPANY (MUTUAL)
MERCHANTS NATIONAL BONDING, INC.

By Larry Taylor
President

STATE OF IOWA
COUNTY OF POLK ss.

On this 27th day of March, 2012, before me appeared Larry Taylor, to me personally known, who being by me duly sworn did say that he is President of the MERCHANTS BONDING COMPANY (MUTUAL) and MERCHANTS NATIONAL BONDING, INC.; and that the seals affixed to the foregoing instrument is the Corporate Seals of the Companies; and that the said instrument was signed and sealed in behalf of the Companies by authority of their respective Boards of Directors.

In Testimony Whereof, I have hereunto set my hand and affixed my Official Seal at the City of Des Moines, Iowa, the day and year first above written.

NOTARIAL SEAL IOWA
MARANDA GREENWALT
Commission Number 770312
My Commission Expires
October 28, 2014

Maranda Greenwalt
Notary Public, Polk County, Iowa

STATE OF IOWA
COUNTY OF POLK ss.

I, William Warner, Jr., Secretary of the MERCHANTS BONDING COMPANY (MUTUAL) and MERCHANTS NATIONAL BONDING, INC., do hereby certify that the above and foregoing is a true and correct copy of the POWER-OF-ATTORNEY executed by said Companies, which is still in full force and effect and has not been amended or revoked.

In Witness Whereof, I have hereunto set my hand and affixed the seal of the Companies on this 6th day of August, 2015.

MERCHANTS NATIONAL BONDING, INC. INCORPORATED -o- 2003

MERCHANTS BONDING COMPANY (MUTUAL) INCORPORATED -o- 1933

William Warner Jr.
Secretary

POA 0014 (11/11)